

Hu v. Hyundai Motor America

AG Case No. NC-1-1249605441 · VIN: KM8KNDDF9RU253237

EXHIBIT 22 — CHRONOLOGICAL COMMUNICATION LOG

Consumer: Jimmy Y. Hu · Hearing: June 9, 2026 · Arbitrator: Maneesha Sharma

This exhibit documents all material communications between Consumer Jimmy Y. Hu, Hyundai Motor America (HMA), Paramus Hyundai Service Center, HMA Roadside Assistance, NYSDRA, and the New York Peace Institute CDRC, from the initial battery failure on April 3, 2025 through the filing of this arbitration. HMA Case references: #410-472-20 / #41047220 (first escalation, opened June 2025) and #420-530-79 / #42053079 (second escalation, January 2026). Roadside Assistance Reference: RA Case #76530936.

Date	Party	Method	Reference / Document	Summary
SECTION A — INITIAL BATTERY FAILURE, CORPORATE ESCALATION & FIRST SETTLEMENT OFFER (April – November 2025)				
04/03/2025	Consumer → Paramus Hyundai	In person / Phone	RO #358530	Consumer brought vehicle in: battery at 100%, range only 37 miles. Dealer retained vehicle; provided Hyundai Elantra loaner. Techline notified; PDFs of deviations in multiple battery cells transmitted. Backordered parts — no repair timeline given.
04/03/2025 – 08/07/2025	Paramus Hyundai (in shop)	—	RO #358530	Vehicle out of service 126 days . Consumer made repeated calls to dealer and HMA corporate; no status updates provided.
06/16/2025	Consumer → HMA Corporate	Phone	HMA Case #410-472-20	Consumer called HMA customer service at 1-800-523-4030; transferred to Lemon Law Dept. at 1-800-633-5151 (Option 8). Communicated 10+ weeks in uncomfortable loaner causing back/neck pain. Sought amicable resolution before legal action. HMA opened Case #410-472-20. No follow-up from HMA for weeks after this call.
06/23/2025	Consumer → HMA Corporate	Phone	HMA Case #410-472-20	Consumer called again, referencing the case number. Transferred to case manager Dhan Lhou , who avoided clear answers and would only vaguely state the vehicle “ <i>may be eligible for a buyback</i> ” without committing to any resolution. Said the case would be escalated again, with a callback in five business days. No callback was received. (Documented in Consumer’s 07/28/2025 leadership escalation email.)
07/28/2025	Consumer → HMA Executive / CEO’s Office (J. Munoz, jmunoz@hmausa.com)	Email	Subject: “Ongoing Issues with Hyundai IONIQ 5 ... and Breakdown in Corporate	Written escalation to Hyundai leadership. Consumer documented:

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			Accountability – Case #410-472-20”	vehicle leased 05/22/2024 from Koeppel Hyundai (Long Island City) new with <300 miles; projected range fell from ~270 miles (90% charge) to 37 miles by 04/03/2025; service advisor stated 15+ Hyundai EVs were experiencing the same issue, suggesting a systemic defect . Recounted the unanswered 06/16 and 06/23 escalations (incl. Dhan Lhou). Detailed ongoing hardship: lease payments on an unusable vehicle, monthly EV charging fees to parking garage, and an uncomfortable Elantra loaner causing back pain . Requested buyback or replacement, reimbursement of lease payments and EV charging fees, and a competent point of contact; stated intent to pursue Lemon Law relief if unresolved.
07/29/2025	HMA → Consumer (Raj, Executive Customer Service Specialist, CSS Dept., css@hmausa.com, (714) 707-3825)	Email	Subject: “Case #41047220”	First substantive corporate response — received the day after the leadership escalation. Raj advised that the case had been escalated to him for further review, that he had left a voicemail, and requested a callback or a convenient time to reach the Consumer.
07/30/2025	Consumer → Raj (HMA)	Phone	HMA Case #41047220	Consumer returned the call; confirmed the correct callback number on file. Raj asked whether Consumer had anything to add (Consumer stated everything was in the written escalation). Raj apologized on behalf of Hyundai , said he would try to obtain a better/more comfortable loaner to address the back pain, and stated Consumer would hear back within 5 days. (Documented in Consumer’s contemporaneous 07/31/2025 summary email.)
08/01/2025	HMA (Raj) → Consumer	Email	HMA Case #41047220	HMA advised rental reimbursement available up to \$75/day ; rental insurance and damage-

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				waiver costs stated to be non-reimbursable.
08/07/2025	Paramus Hyundai → Consumer	Phone	RO #358530 closed	Dealer called — battery repair authorized and completed. Consumer picked up vehicle at 1:00 PM.
08/08/2025	HMA (Raj) → Consumer	Email / Phone	HMA Case #41047220	HMA attempted phone contact; unable to reach Consumer. Requested an alternate number or convenient time.
08/11/2025	HMA (Raj) ⇄ Consumer	Email	HMA Case #41047220	HMA stated it was reviewing the compensation request and requested the Sales/Purchase Agreement and Payment History. Consumer provided the requested documents the same day (plus additional records from HMFUSA.com).
08/12/2025	Consumer → Paramus Hyundai	Phone / In person	RO #363888	Low coolant warning on dashboard. Consumer returned vehicle; provided loaner for ~36 hours.
08/18/2025	HMA (Raj Kiran, National Consumer Affairs) → Consumer	Email w/ attachment	HMA Offer Letter #1 (Ex05); "Repurchase Calculated Offer – JIMMY HU.pdf"	HMA sent its first written settlement offer : (1) \$4,000 cash settlement (keep vehicle), or (2) repurchase at \$7,977.00 (down payment + 16 lease payments; mileage deduction WAIVED).
08/28–29/2025	Paramus Hyundai	In person	RO #363888 closed	Coolant refilled. Vehicle returned to Consumer. CUMULATIVE DAYS OUT OF SERVICE through this date: 179 days.
08/28/2025	HMA (Raj) → Consumer	Email / Phone	HMA Case #41047220	HMA attempted phone contact; unable to reach Consumer.
09/11/2025 & 09/18/2025	HMA (Raj) → Consumer	Email	HMA Case #41047220	Weekly follow-up emails requesting any updates and asking whether Consumer would return to the dealership before October.
09/25/2025	Consumer → Raj (HMA)	Email	HMA Case #41047220	Consumer elected the \$4,000 cash option ("the simplest solution" given limited time) and asked HMA to begin next steps.
09/26/2025	HMA (Raj) → Consumer	Email w/ attachment	"Settlement Agreement – KM8KNDDF9RU253237.pdf"	HMA sent a settlement/release agreement for Consumer to review, sign, and notarize.
09/30/2025	Consumer → Raj (HMA)	Email	HMA Case #41047220	Consumer requested three edits before signing: (1) limit the release to the

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09/30/2025	HMA (Raj) → Consumer	Email	HMA Case #41047220	specific battery/EV issue (Feb–Aug 2025), not all future/unrelated claims; (2) narrow the overbroad confidentiality clause (Consumer needed to pursue an insurance claim and parking-garage / EV-charging-fee and EZ-Pass matters); and (3) remove the California Civil Code § 1542 waiver as inapplicable in New York. HMA asked for the best time to call the following day to “<i>discuss your request in more detail.</i>”
~10/01/2025	HMA (Raj) → Consumer	Phone	HMA Case #41047220	On the follow-up call, HMA conveyed — politely but firmly — that the settlement was effectively “take it or leave it”: the legal department had stated the terms could not be adjusted or altered, and none of Consumer’s requested release edits would be permitted. (Per Consumer’s recollection of the call; follows directly from the 09/30 emails above.)
10/03/2025	HMA (Raj) → Consumer	Email	HMA Case #41047220	To proceed with the repurchase option, HMA requested the current mileage and August/September payment history (acknowledging payment history through July had been received).
10/14/2025	HMA (Raj) → Consumer	Email	HMA Case #41047220	HMA asked about the status of vehicle body repairs and again requested mileage/payment history to proceed — the first appearance of the body-repair condition tied to closing the deal.
10/17/2025	Consumer → Raj (HMA)	Email	HMA Case #41047220	Consumer reported a new battery/EV issue related to the original defect: the vehicle was charging very slowly (Level 1 only). Consumer advised he would need to return the vehicle to the service center again.
10/20/2025	HMA (Raj) → Consumer	Email	HMA Case #41047220	HMA asked Consumer to bring the vehicle to the dealership for inspection and again requested mileage/payment history.

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10/24/2025	HMA ("Jazz" / Jaskaranjit, nationalca@hmausa.com, for Raj) ⇌ Consumer	Email	HMA Case #41047220	Check-in on behalf of Raj (out of office). Consumer replied that he was completing rear bumper body repairs and would return the vehicle once those were done — corroborating that body work had become a precondition to executing Offer #1.
11/05/2025	HMA (Elaheh, css@hmausa.com; cc nationalca@hmausa.com) → Consumer	Email	HMA Case #41047220	On behalf of Raj; advised that Raj was unable to reach Consumer that day and that further contact would follow. Offer #1 was never executed before the second failure event.
SECTION B — SECOND BATTERY FAILURE EVENT (January 2026)				
01/05/2026	Consumer	—	Loss-of-Use Narrative (Ex Supp.)	Vehicle driven without incident. Battery and EV systems appeared fully functional.
01/06/2026	Consumer → HMA Roadside Assistance	Phone	RA Case #76530936	Morning: high-voltage battery completely dead — vehicle would not start and would not accept a charge via the EV port. Contemporaneous video of the failed start/charge attempts exists. Consumer forced to use rideshare (Lyft) to/from his ophthalmology practice in Clifton, NJ. HMA Roadside responded and reportedly jump-started the vehicle.
01/07/2026	Consumer → HMA Roadside Assistance	Phone	RA Case #76530936	Next morning: vehicle dead again. HMA Roadside dispatched a tow to Paramus Hyundai. Dealership's initial assessment was equivocal — failure attributable either to the HV battery or to pre-existing headlamp-housing damage. The headlamp housing was cracked but the headlamp itself was fully functional ; that cosmetic damage had existed since 12/22/2024 and was never flagged when the vehicle was returned on 08/07/2025.
01/08/2026	HMA (CSS) → Consumer	Phone / Email	HMA Case #42053079	First contact under the second escalation (new HMA Case #42053079). Following a phone call that day, the case manager confirmed the conversation by email and committed to

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				a status update by 01/15/2026.
01/08– 01/16/2026	Consumer (loss-of-use)	—	Ex17 / Ex21 (National Car Rental)	With no functional vehicle, Consumer rented a Hyundai Kona from National Car Rental — \$412.57 .
01/20– 01/23/2026	Consumer (loss-of-use)	—	Ex17 / Ex21 (Avis)	Second interim rental from Avis — \$192.09 — supplemented by Lyft rides and public transit while costs mounted.
01/22/2026	HMA (CSS) → Consumer	Email	HMA Case #42053079	HMA emailed asking whether there were updates from the insurance company regarding the approval needed to move forward with the diagnosis — reflecting that, while the vehicle sat undiagnosed, HMA was treating the matter as tied to the headlamp/body-damage detour rather than the warranty defect later confirmed.
01/22/2026	Consumer → Mizzoni's Auto Body	In person	Mizzoni's Invoice (Ex16)	To foreclose Hyundai's causation argument , Consumer self-paid a headlamp-housing replacement at Mizzoni's Auto Body (substantially less than Paramus would have charged) — a deliberate strategic decision to eliminate the only alternative explanation Hyundai had offered. Vehicle then stored in an indoor garage for ~2 weeks.
SECTION C — THIRD BATTERY FAILURE, DIAGNOSIS & HMA SECOND OFFER (January – February 2026)				
01/29/2026	HMA → Consumer	Email w/ attachment	HMA Offer Letter #2 (Ex06); HMA Case #42053079	HMA sent its second written offer : (1) \$5,000 cash (keep vehicle), or (2) repurchase at \$5,388.51 (now applying a \$4,326.49 mileage deduction that had been WAIVED in Offer #1). Net repurchase offer \$2,588.49 WORSE than Offer #1 despite additional defect events. HMA also placed phone-contact attempts on 01/29 and 01/30.
02/09/2026	Consumer	In person	Mizzoni's pickup	Retrieved vehicle from Mizzoni's with the headlamp repair confirmed complete . Battery 35–40% HV, ~130 miles range. Drove ~20

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				minutes without issue; parked ~1:20 PM at 780 Main Avenue, Passaic, NJ (lot across from a KFC).
02/09/2026 1:35 PM	Consumer → HMA Roadside Assistance	Phone	RA Case #76530936	~15 minutes after parking, the vehicle was completely dead : no start, no hazard lights, no door locks. With the headlamp now fully replaced, the battery failed again — the factual checkmate conclusively showing the headlamp was never the cause. Consumer called HMA Roadside immediately.
02/09/2026 (cont.)	HMA Roadside Assistance / AAA contractor	Phone / Dispatch	RA Case #76530936	Due to an HMA Roadside dispatch failure , no tow arrived until ~8:30 PM. Because the immobilized vehicle remained in a private commercial lot past closing, it was towed to Raineri's Service Station (179 Main Avenue, Passaic, NJ) as an unauthorized impound — directly caused by Hyundai's delay. The AAA driver contracted by HMA Roadside witnessed the events.
02/10– 02/20/2026	Consumer (loss-of-use)	—	Ex17 / Ex21 (National Car Rental)	To maintain access to his surgical practice while the vehicle was held, Consumer rented a Chevrolet Trax from National Car Rental — \$608.40 — held through the date the vehicle was returned.
02/09– 02/13/2026	HMA Roadside Assistance / Towing	Phone / Dispatch	RA Case #76530936; Roadside Reimb. Case #2026-6680; Ex17, Ex21	Multiple towing dispatch errors by HMA Roadside. Vehicle finally towed to Paramus Hyundai on 02/13/2026. HMA reimbursed \$391.25 of the \$406.90 tow charge under Roadside Reimbursement Case #2026-6680; \$15.65 unreimbursed due to HMA dispatch error.
02/13/2026	Consumer → Paramus Hyundai	In person	RO #370267 opened	Vehicle admitted. With the headlamp now eliminated as a variable, the dealership reduced its diagnostic fee from \$1,040 to \$540 — further undercutting the earlier headlamp theory. Verbal agreement reached that the \$540 fee would be waived entirely if the diagnosis

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				revealed a warranty-covered defect.
~02/18/2026	Consumer → Paramus Hyundai	In person / Email	Diagnostic Agreement (\$540)	Consumer signed the \$540 Hyundai Service Diagnostic Agreement, restating that the fee should be waived if the defect was warranty-covered.
02/19/2026	Paramus Hyundai → Consumer	Phone / Written	RO #370267	DIAGNOSTIC FINDING: Dealership officially confirmed in writing the root cause is a manufacturing defect covered under the Hyundai New Vehicle Limited Warranty . Full HV battery-pack replacement authorized; the \$540 fee was waived per the verbal agreement.
02/20/2026	Paramus Hyundai → Consumer	In person	RO #370267 closed	Consumer picked up vehicle; battery replacement complete under warranty. Days out of service for this repair event: 7 days . Consumer used a final Lyft ride (\$83.92) from the rental-return point to Paramus Hyundai to retrieve the vehicle.
SECTION D — ARBITRATION FILING, NYSDRA / CDRC PROCEEDINGS & HMA NON-RESPONSE (April – June 2026)				
05/22/2026	Consumer ⇄ Hyundai Motor Finance (HMF)	Adobe Sign (e-signature)	HMF Lease Term Extension — Account #2415627694	Consumer executed the Hyundai Motor Finance lease-term extension so car would be available for the arbitration hearing. Relevant to standing: the lease remains active through (and beyond) the June 9 hearing — the vehicle has not been returned or surrendered. The extension's internal arbitration clause does not affect this statutory NY Lemon Law proceeding.

Notes

This log is compiled from Consumer's contemporaneous records, HMA written correspondence (Gmail), dealer repair orders, the Loss-of-Use Incident Narrative (Exhibit Supplement), and NYSDRA / CDRC official communications. Where exact timestamps are unavailable, dates are approximate based on Consumer's records and corroborating documentation.

Rows shaded in amber were added or expanded in this revision to incorporate (a) the Loss-of-Use Incident Narrative for January–February 2026; (b) the summer/fall 2025 corporate-escalation email chain (the July 28, 2025 leadership escalation through the first settlement offer and the “take it or leave it” call); and (c) the April–June 2026 NYSDRA / CDRC procedural record and the May 22, 2026 lease-term extension. Items in red are open reconciliation points to confirm before the hearing.

HMA extended **two formal written settlement offers**: Offer #1 (08/18/2025) and Offer #2 (01/29/2026). The net repurchase value **declined** between them (a \$4,326.49 mileage deduction was applied in Offer #2 that had been waived in Offer #1). No formal third offer was received.

This exhibit does not purport to be exhaustive; additional communications may be reflected in individual exhibits.

Consumer Certification

I, Jimmy Y. Hu, hereby certify under penalty of perjury that the communications listed in this exhibit are true and accurate to the best of my knowledge and recollection.

Signature:  _____ Date: 6/4/2026 _____

Jimmy Y. Hu, Consumer (Self-Represented)

This document is Exhibit 22 to Consumer's submission in Hu v. Hyundai Motor America, AG Case No. NC-1-1249605441.